

40 & 41 Vict.
c. 2.

March nineteen hundred and eight, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding five pounds per cent. per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

Short title.

4. This Act may be cited as the Consolidated Fund (No. 1) Act, 1907.

CHAPTER 2.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[29th April 1907.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and ninety thousand including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within

this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act will expire in the year one thousand nine hundred and seven on the following days:— 44 & 45 Vict.
c. 58.

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere in Europe, inclusive of Malta, also in the West Indies and America, on the thirty-first day of July; and
- (c) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of December:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the Army (Annual) Act, 1907. Short title.

2.—(1) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament (that is to say):— Army Act to
be in force for
specified times.

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and seven to the thirtieth day of April one thousand nine hundred and eight, both inclusive; and
- (b) Elsewhere in Europe, inclusive of Malta, also in the West Indies and America, from the thirty-first day of July one thousand nine hundred and seven to the thirty-first day of July one thousand nine hundred and eight, both inclusive; and
- (c) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of December one thousand nine hundred and seven to the thirty-first day of July one thousand nine hundred and eight, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

Prices in respect of billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the First Schedule to this Act.

AMENDMENTS OF ARMY ACT.

Amendment of Army Act as to complaint by a soldier.

4. In section forty-three of the Army Act (which deals with the mode of complaint by a soldier), after the words "to the prescribed general officer" there shall be inserted the words "or in the case of a soldier serving in India to such officer as the Commander-in-Chief of the forces in India with the approval of the Governor-General of India in Council may appoint."

Amendment of Army Act as to taking of evidence before a commanding officer.

5. In subsection (6) of section forty-six of the Army Act (which enables the accused person to demand that the evidence taken against him before the commanding officer shall be taken on oath), for the words "where the power of summary award by a commanding officer exceeds a sentence of seven days' detention" there shall be substituted the words "where the commanding officer has power to deal with the case summarily."

Amendment of Army Act as to rules relating to military prisons and prisoners.

6. In subsection (2) of section one hundred and thirty-three of the Army Act (which relates to the power of a Secretary of State to make rules with respect to military prisons and prisoners), for the words "military prisoners" there shall be substituted the words "military or other prisoners."

Amendment of Army Act as to sentences on officers of Indian Staff Corps.

7. Paragraph (e) of subsection (2) of section one hundred and eighty of the Army Act (which relates to sentences on officers of the Indian Staff Corps) shall be repealed.

Amendment of Army Act as to billeting.

8. For paragraph (2) of Part I. of the Second Schedule to the Army Act (which relates to billeting) there shall be substituted the paragraph set forth in the Second Schedule to this Act, and in the third paragraph of the said part of the said Schedule to the Army Act for the words "a hot meal" there shall be substituted the words "a meal."

Adaptation of provision of Army Act to punishment of detention.

9.—(1) For the purpose of giving effect to the provisions of the Army (Annual) Act, 1906, relating to the punishment of detention, the modifications set out in the Third Schedule to this Act shall be made in the Army Act.

(2) Section 135A of the Army Act is hereby repealed.

Provisions as to punishments on active service.

10. In the provisions of the Army Act relating to punishments on active service, the following amendments shall be made:—

(1) In section forty-four (which relates to the scale of punishments by courts-martial)—

(a) There shall be substituted for proviso (5) the following proviso:—

"(5) Where a soldier on active service is guilty of any offence it shall be lawful for a

court-martial to award for that offence such field punishment other than flogging as may be directed by rules to be made from time to time by a Secretary of State, and such field punishment shall be of the character of personal restraint or of hard labour, but shall not be of a nature to cause injury to life or limb”;

(b) The words “field punishment” shall be substituted for the words “summary punishment” wherever those words occur in provisoes (9) and (10);

(c) Provisoes (6), (7), and (8) shall be repealed;

(d) The following proviso shall be added as a new proviso after proviso (5):—

“(6) In addition to or without any other punishment in respect of an offence committed by a soldier on active service, it shall be lawful for a court-martial to order that the offender forfeit all ordinary pay for a period commencing on the day of the sentence and not exceeding three months.”

(2) In section forty-six (which relates to the powers of commanding officers)—

(a) At the end of subsection (2) there shall be added the following paragraph:—

“and

“(d) In the case of an offence by a soldier (not being a non-commissioned officer) on active service, may award to the offender field punishment within the meaning of section forty-four of this Act for any period not exceeding twenty eight days, and may in addition to or without any other punishment order that the offender forfeit all ordinary pay for a period commencing on the day of the sentence and not exceeding twenty-eight days;”

(b) In subsection (3) the words “not on duty and it is not an aggravated offence of drunkenness” within the meaning of section forty-four of this Act” shall be repealed, and after the word “unless” there shall be added the words “the offence was committed on active service or on duty, or after the offender was warned for duty, or unless by reason of the drunkenness the offender was found unfit for duty, or unless.”

(3) In paragraph (d) of subsection (1) of section forty-nine (which relates to field general courts-martial) the words “field punishment” shall be substituted for the words “summary punishment.”

- (4) At the end of section seventy-four (which relates to provost marshals) the following proviso shall be added:—

“Provided that a provost marshal and his assistants shall, as respects any soldier in his or their custody and undergoing field punishment, have the same powers as the governor of a military prison.”

- (5) At the end of section one hundred and thirty-three (which relates to the establishment and regulation of military prisons) there shall be added as a new subsection:—

“(7) In any country in which operations against the enemy are being conducted the powers of a Secretary of State under this section with respect to military prisons and detention barracks shall be exercisable by the officer commanding-in-chief in the field, and shall include a power of declaring any place to be a military prison or a detention barrack, and the limitations on the power of making rules as to the punishment of prisoners and soldiers undergoing detention and as to the severity of imprisonment and detention shall not apply: Provided that nothing in this subsection, or in any rules made thereunder, shall authorise flogging or other corporal punishment to be inflicted for any offence.”

- (6) In section one hundred and thirty-eight (which relates to penal stoppages from ordinary pay of soldiers)—

(a) In paragraph (1), after the word “detention,” in both places where it occurs, there shall be inserted the words “or field punishment”;

(b) At the end the following proviso shall be added:—

“and

“(c) where a soldier who is sentenced or ordered in respect of an offence on active service to forfeit all ordinary pay is liable to any other penal deductions from pay, the sentence or order shall apply only to so much of his ordinary pay as remains after those other deductions have been made.”

- (7) In section one hundred and eighty-three of the Army Act which contains special provisions as to non-commissioned officers)—

(a) In paragraph (2) after the words “may appoint,” there shall be inserted the words, “and “on active service the officer commanding-in-chief “in the field and any general officer he may “appoint”;

(b) In paragraph (4) after the words “penal servitude” there shall be inserted the words “field punishment.”

SCHEDULES.

FIRST SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier, where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Fourpence each.
Hot dinner as so specified - - - - -	Elevenpence halfpenny each.
Supper as so specified - - - - -	Twopence halfpenny each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and ninepence per day.
Lodging and attendance for officer - - - - -	Two shillings per night.

Note.—An officer shall pay for his food.

SECOND SCHEDULE.

Section 8.

Paragraph to be substituted for paragraph (2) of Part I. of
Second Schedule to Army Act.

“(2) Shall, if required by the soldier, furnish him for every day of the march, and for not more than two days, if the soldier is halted at an intermediate place on the march for more than two days, and on the day of arrival at the place of final destination, with breakfast, hot dinner, and supper on each day, such meals to consist of such quantities of food and drink as may from time to time be fixed by His Majesty's Regulations, not exceeding—

“(a) For breakfast, six ounces of bread, one pint of tea with milk and sugar, four ounces of bacon ;

“(b) For hot dinner, one pound of meat previous to being dressed, eight ounces of bread, eight ounces of potatoes or other vegetables, one pint of beer or mineral water of equal value ;

“(c) For supper, six ounces of bread, one pint of tea with milk and sugar, two ounces of cheese ; and”

Section 9.

THIRD SCHEDULE.

MODIFICATIONS OF ARMY ACT.

Modification to be made.	Provisions of Army Act to be modified.
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I.

The following substitution of words shall be made :—

"person" for "prisoner"	Sections twenty; twenty-one; sixty-eight, subsection (1); one hundred and thirty, subsection (5); and one hundred and thirty-one, subsection (2).
"imprisonment or detention" for "or imprisonment."	Sections fifty-seven; sixty-eight, subsection (1); seventy; one hundred and fifty-eight, subsection (2); one hundred and eighty-three, subsection (4) and proviso (a); and one hundred and eighty-seven.
"that person's" for "the prisoner's."	Section twenty-one.
"order the offender" for "commit such offender to prison there."	Section twenty-eight.
"accused persons" for "accuseds."	Section fifty-two, subsection (1).
"detention" for "imprisonment."	Section eighty-three, subsection (7).

II.

The following insertion of words shall be made :—

"or soldier"	After the words "such prisoner" in sections sixty-seven, subsection (1). After the word "prisoner" in section sixty-seven, subsections (2) and (3). After the word "prisoner" (except where that word follows the word "military") in section one hundred and seventy-two.
"or detention barrack"	After the word "prison" in sections sixty-seven, subsection (2); one hundred and thirty, subsection (5); and one hundred and thirty-one, subsection (2). After the words "a military prison" in section one hundred and thirty-three, subsection (1). After the words "military prison" in section one hundred and thirty-three, subsection (3).
"and detention barracks"	After the word "prisons" in sections one hundred and thirty-three, subsections (2) and (5); and one hundred and eighty-seven.
"or detention, as the case may be."	After the words "for the purposes of the provisions of this Act relating to imprisonment" in sections sixty-four and sixty-five.

Modification to be made.	Provisions of Army Act to be modified.
"or detention"	After the words "of imprisonment" in sections sixty-four, sixty-five, sixty-six, and sixty-seven. After the word "imprisonment" in sections sixty-eight, one hundred and thirty, one hundred and thirty-one, one hundred and thirty-three subsection (2), and one hundred and forty.
"or soldier undergoing detention."	After the word "prisoner" in sections sixty-four, paras. (2) (d), (3) (c), and (4) (c); sixty-five, paras. (4) (c), (5) (a), and (6) (b); and sixty-six. After the words "military prisoner" in sections sixty-seven, subsection (1); and one hundred and seventy-two, subsections (2) and (4).
"or, in the case of a soldier to undergo detention."	After the word "labour" in section twenty-eight.
"or undergoing detention."	After the word "imprisoned" in section one hundred and thirty, subsection (5).
"and soldiers undergoing detention."	Before the word "therein" in section one hundred and thirty-three, subsection (2).
"or soldiers"	After the words "such prisoners" in section one hundred and thirty-three, subsection (2).
"made to undergo detention."	After the word "imprisoned" in section one hundred and fifty-eight, subsection (2).
"or a soldier undergoing detention."	After the words "military prisoner" in section one hundred and seventy-two, subsection (5).

III.

The following section shall be substituted for section sixty-three :—

- "63.—(1) Where a sentence of imprisonment is passed by court-martial, the person on whom that sentence has been passed (in the provisions of this Act relating to imprisonment referred to as a military prisoner) shall undergo the term of his imprisonment either in military custody or in a detention barrack or in a public prison, or partly in one way and partly in another, and, where a sentence of detention is passed by a court-martial or a commanding officer, the person on whom that sentence has been passed (in the provisions of this Act relating to detention referred to as a soldier undergoing detention) shall undergo the term of his detention either in military custody or in a detention barrack, or partly in one way and partly in the other, but not in a prison.
- "(2) Any person liable to be imprisoned in a military prison may be confined in a detention barrack.
- "(3) The order of the committing authority hereafter mentioned shall be a sufficient warrant for the transfer of a military prisoner to a public prison or a detention barrack, or a soldier undergoing detention to a detention barrack.
- "(4) A military prisoner while in a public prison shall be confined, kept to hard labour, and otherwise dealt with in the like manner as an ordinary prisoner under a like sentence of imprisonment; and, where

Execution of sentences of imprisonment and detention.

" the hospital or place for the reception of sick persons in a public prison
 " or a detention barrack is detached from the prison or detention barrack,
 " a military prisoner or a soldier undergoing detention may be detained in
 " that hospital or place, and conveyed to or from the same as circumstances
 " require.

" (5) A military prisoner or a soldier undergoing detention, during
 " his conveyance from place to place, or when on board ship or otherwise,
 " may be subjected to such restraint as is necessary for his safe custody
 " and removal.

" (6) The discharging authority hereafter mentioned may, at any time
 " during the period of the imprisonment of a military prisoner, or of
 " the detention of a soldier undergoing detention, by order discharge the
 " prisoner or soldier.

" (7) The committing authority or any other prescribed authority may
 " at any time by order remove a military prisoner from one public prison
 " or detention barrack to another prison or detention barrack, or a soldier
 " undergoing detention from one detention barrack to another, so that
 " he be not removed from a prison or detention barrack in the United
 " Kingdom to a prison or detention barrack elsewhere.

" (8) The removing authority hereafter mentioned may, at any time
 " during the period of the imprisonment of a military prisoner or of the
 " detention of a soldier undergoing detention, from time to time by order
 " provide for his being brought before a court-martial, or any civil court,
 " either as a witness, or for trial or otherwise, and an order of such
 " authority shall be a sufficient warrant for delivering him into military
 " custody and detaining him in custody until he can be returned, and for
 " returning him to the place from whence he is brought, or to such other
 " place as may be determined by the removing authority."

CHAPTER 3.

An Act to repeal the Law, which prohibits the Growing
 of Tobacco in Ireland. [4th July 1907.]

WHEREAS it is of the greatest importance that every
 attention and encouragement should be given to the
 produce and manufactures of Ireland :

1 & 2 Will. 4.
 c. 13.

And whereas by virtue of the Tobacco Cultivation Act, 1831,
 the cultivation of tobacco within the kingdom of Ireland, and
 the exportation of the same from thence, is prohibited :

Be it therefore enacted by the King's most Excellent
 Majesty, by and with the advice and consent of the Lords
 Spiritual and Temporal, and Commons, in this present
 Parliament assembled, and by the authority of the same, as
 follows :

Acts pro-
 hibiting
 growth of
 tobacco in
 Ireland to be
 repealed when
 an excise duty
 is imposed.

1.—(1) As from a date to be fixed by His Majesty by Order
 in Council as soon as Parliament has made provision for an
 excise duty on tobacco produced in Ireland, the Tobacco
 Cultivation Act, 1831, and any other Act, so far as it pro-
 hibits or restrains the setting, planting, or improving to grow,
 making or curing tobacco, either in seed, plant, or otherwise,
 in the kingdom of Ireland, shall be, and the same is, hereby
 repealed and made void.

(2) The Commissioners of Inland Revenue may make regu-
 lations prohibiting the growth or cultivation of tobacco in